

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Enoch Sowah	Team: Squad #01	CCRB Case #: 202107626	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 12/15/2021 1:00 AM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 6/15/2023	Precinct: 81		
Date/Time CV Reported Wed, 12/15/2021 8:47 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 12/15/2021 8:47 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Tahmeka Barnes	12099	941392	081 PCT
2. PO Nory Mitchell	13159	968011	081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Michael Petrone	02563	937285	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Nory Mitchell	Abuse: Police Officer Nory Mitchell entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . PO Tahmeka Barnes	Abuse: Police Officer Tahmeka Barnes entered § 87(2)(b) in Brooklyn.	B . Substantiated
C . PO Nory Mitchell	Abuse: Police Officer Nory Mitchell searched § 87(2)(b) in Brooklyn.	C . Substantiated
D . PO Tahmeka Barnes	Abuse: Police Officer Tahmeka Barnes searched § 87(2)(b) in Brooklyn.	D . Substantiated
E . PO Nory Mitchell	Abuse: Police Officer Nory Mitchell failed to obtain language interpretation services for § 87(2)(b)	E . Unsubstantiated
F . PO Tahmeka Barnes	Abuse: Police Officer Tahmeka Barnes failed to obtain language interpretation services for § 87(2)(b)	F . Unsubstantiated
G . PO Nory Mitchell	Abuse: Police Officer Nory Mitchell failed to provide § 87(2)(b) with a business card.	G . Substantiated
H . PO Tahmeka Barnes	Abuse: Police Officer Tahmeka Barnes failed to provide § 87(2)(b) with a business card.	H . Substantiated
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(g), § 87(4-b)	§ 87(2)(b)	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On December 15, 2021, § 87(2)(b) called the CCRB and filed this complaint on behalf of herself. The case was originally assigned to Investigator Sebastian Saavedra. On August 15, 2022, the case was reassigned to Supervising Investigator Enoch Sowah.

On December 15, 2021, at approximately 1 a.m., Police Officers Tahmeka Barnes and Nory Mitchell, from the 81st Precinct, entered and searched § 87(2)(b) apartment located at § 87(2)(b) in Brooklyn (**Allegations A through D: Abuse of Authority, substantiated**). PO Barnes and PO Mitchell failed to obtain language interpretation services for § 87(2)(b) (**Allegations E and F: Abuse of Authority, unsubstantiated**), and failed to provide § 87(2)(b) with business cards (**Allegations G and H: Abuse of Authority, substantiated**).
§ 87(2)(g), § 87(4-b)

No arrests or summonses resulted from this incident.

Two BWCs were received, but the footage does not capture any of the allegations in this incident (Board Review 01-02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Nory Mitchell entered § 87(2)(b) in Brooklyn.

Allegation (B) Abuse of Authority: Police Officer Tahmeka Barnes entered § 87(2)(b) in Brooklyn.

Allegation (C) Abuse of Authority: Police Officer Nory Mitchell searched § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Tahmeka Barnes searched § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Police Officer Nory Mitchell failed to obtain language interpretation services for § 87(2)(b)

Allegation (F) Abuse of Authority: Police Officer Tahmeka Barnes failed to obtain language interpretation services for § 87(2)(b)

Allegation (G) Abuse of Authority: Police Officer Nory Mitchell failed to provide § 87(2)(b) with a business card.

Allegation (H) Abuse of Authority: Police Officer Tahmeka Barnes failed to provide § 87(2)(b) with a business card.

The following facts are not disputed. On December 14, 2021, at approximately 11 p.m., § 87(2)(b) identified via investigation, called 911 and reported that her 81-year-old mother, § 87(2)(b) who resides with § 87(2)(b) at § 87(2)(b) in Brooklyn, which is a § 87(2)(b) building, was missing. At approximately 12 a.m., on December 15, 2021, PO Barnes and PO Mitchell responded to the location, and spoke with § 87(2)(b) who told the officers that she had not seen her mother, who suffered from dementia, since 3 p.m., on December 14, 2021 (Board Review 03). § 87(2)(b) informed the officers about possible locations, including multiple apartments inside the building, where her mother often frequented. The two officers knocked on the doors of each of the potential apartments inside the building in search of § 87(2)(b).

§ 87(2)(b) (Board Review 04) provided her statement in Spanish and said she had limited English proficiency. § 87(2)(b) said she was asleep inside her two-bedroom apartment with her mother, when she heard a knock on her front door. She woke up, opened her front door, and saw PO Barnes and PO Mitchell at the door. PO Barnes and PO Mitchell told § 87(2)(b) in English that they were looking for § 87(2)(b). § 87(2)(b) did not understand everything the officers said but understood that they were looking for § 87(2)(b). She thus replied, “§ 87(2)(b) not here.” PO Mitchell and PO Barnes then immediately entered § 87(2)(b) apartment, and

“looked” through the bedrooms, kitchen, and living rooms with their flashlights. § 87(2)(b) also voluntarily opened her bathroom door, and hallway closet door for the officers to look inside but provided no reason for doing so. The officers left the apartment soon after, did not provide § 87(2)(b) with any reason for entering and searching the apartment, and did not provide § 87(2)(b) with a business card, nor did she ask for one. § 87(2)(b) said neither of the officers sought her permission before entering and searching her apartment and she did not consent to the entry and search of the apartment. § 87(2)(b) also stated that she did not inform the officers about her limited English proficiency and did not request interpretation services. The officers did not offer her interpretation services.

§ 87(2)(b) (Board Review 05) said that she directed the officers to § 87(2)(b) apartment because her mother often spent time inside § 87(2)(b) apartment but did not witness the officers’ interaction with § 87(2)(b).

PO Mitchell’s and PO Barnes’ BWC only shows the two officers speaking with § 87(2)(b) about her mother’s whereabouts, and then checking all the hallways in the building for § 87(2)(b). The footage does not depict the officers’ interaction with § 87(2)(b) (Board Review 01 – Board Review 02).

PO Mitchell (Board Review 06) said that she and PO Barnes notified their supervisors about § 87(2)(b) potential disappearance, that the incident was elevated to a “special category-missing person,” given that § 87(2)(b) was elderly and suffered from mental illness, and thus resulted in additional notifications to officers from nearby precincts and transit districts to be on the lookout for any elderly person matching § 87(2)(b) description. PO Mitchell and PO Barnes also searched all the hallways, the roof, and nearby surroundings in the building in search of § 87(2)(b). At some point, § 87(2)(b) provided the officers with a list of potential apartments inside the building, and nearby locations that she said § 87(2)(b) often visited. PO Mitchell and PO Barnes visited and knocked on the doors of each of the potential apartments within the building and spoke with some of the occupants about the whereabouts of § 87(2)(b). PO Mitchell said § 87(2)(b) slightly opened her front door after the officers knocked but proceeded to further open the door when the officers told her that they were looking for § 87(2)(b). PO Mitchell showed § 87(2)(b) a photo of § 87(2)(b) and § 87(2)(b) confirmed that she knew § 87(2)(b) but said she did not know of § 87(2)(b) whereabouts. PO Mitchell then said to § 87(2)(b) in English, “Can we come in? Can I look around?” PO Mitchell later said (Board Review 07) that she only asked § 87(2)(b) if the officers could come inside and speak with her about § 87(2)(b) whereabouts. PO Mitchell did not recall why she asked § 87(2)(b) if the officers could enter the apartment, and acknowledged that she did not tell § 87(2)(b) that she could refuse the officers’ request to enter the apartment, but said § 87(2)(b) said “Yes” to the officers’ request, and told them in English to “come in.” PO Mitchell acknowledged that the officers did not have reason to believe that § 87(2)(b) was inside § 87(2)(b) apartment, that they did not have any concerns about there being an emergency or any immediate need for assistance and said the only reason why they entered § 87(2)(b) apartment was because § 87(2)(b) invited them inside. Once inside, § 87(2)(b) told the officers in English that § 87(2)(b) was her friend, but that she had not seen her, nor did she know of § 87(2)(b) whereabouts. PO Mitchell and PO Barnes were able to see the entire apartment from the living room, and PO Mitchell acknowledged “looking” around the apartment from where she stood. PO Mitchell said she, “out of habit,” asked § 87(2)(b) if there was anyone else inside the apartment. § 87(2)(b) pointed towards a bedroom door which was next to the living room, said her elderly mother was asleep inside the bedroom, and proceeded to bedroom door. PO Mitchell poked her head inside the bedroom and saw § 87(2)(b) mother sleeping. PO Mitchell and PO Barnes thanked § 87(2)(b) and left the apartment. PO Mitchell said the officers did not look or shine their flashlights towards any rooms or closets inside the apartment, and that the officers had no reason to search § 87(2)(b) apartment. PO Mitchell acknowledged that § 87(2)(b) was not fluent in English, but said § 87(2)(b) was proficient enough to clearly communicate with the officers, and that at no point during this incident

§ 87(2)(g) PO Mitchell and PO Barnes also acknowledged visually looking around § 87(2)(b) apartment when they entered, but denied entering or searching any rooms, § 87(2)(g)

§ 87(2)(g)

it is therefore recommended that **Allegations A through D** be closed as **substantiated**.

§ 87(2)(g)

it is therefore recommended that **Allegations E and F** be closed as **unsubstantiated**.

§ 87(2)(g)

it is therefore recommended that **Allegations G and H** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 17).
- PO Barnes has been a member-of-service for 16 years and has been a subject to four other CCRB complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Mitchell has been a member-of-service for three years and has been a subject to one CCRB complaint and three allegations, one of which was substantiated.
 - Case # 202101053 involved a substantiated allegation of search of person. The Board recommended command discipline, and the NYPD has not yet imposed discipline.

Mediation, Civil, and Criminal Histories

- Mediation was not presented to § 87(2)(b)
- As of June 16, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (Board Review 18).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 1

Investigator:	<u>Enoch Sowah</u>	<u>11/02/2022</u>
	Signature	Date
	<u></u>	<u></u>
	Print Title & Name	

Squad Leader:	<u>Mgr. Joy Almeyda</u>	<u>11.2.22</u>
	Signature	Date
	<u></u>	<u></u>
	Print Title & Name	

Reviewer:	<u></u>	<u></u>
	Signature	Date
	<u></u>	<u></u>
	Print Title & Name	